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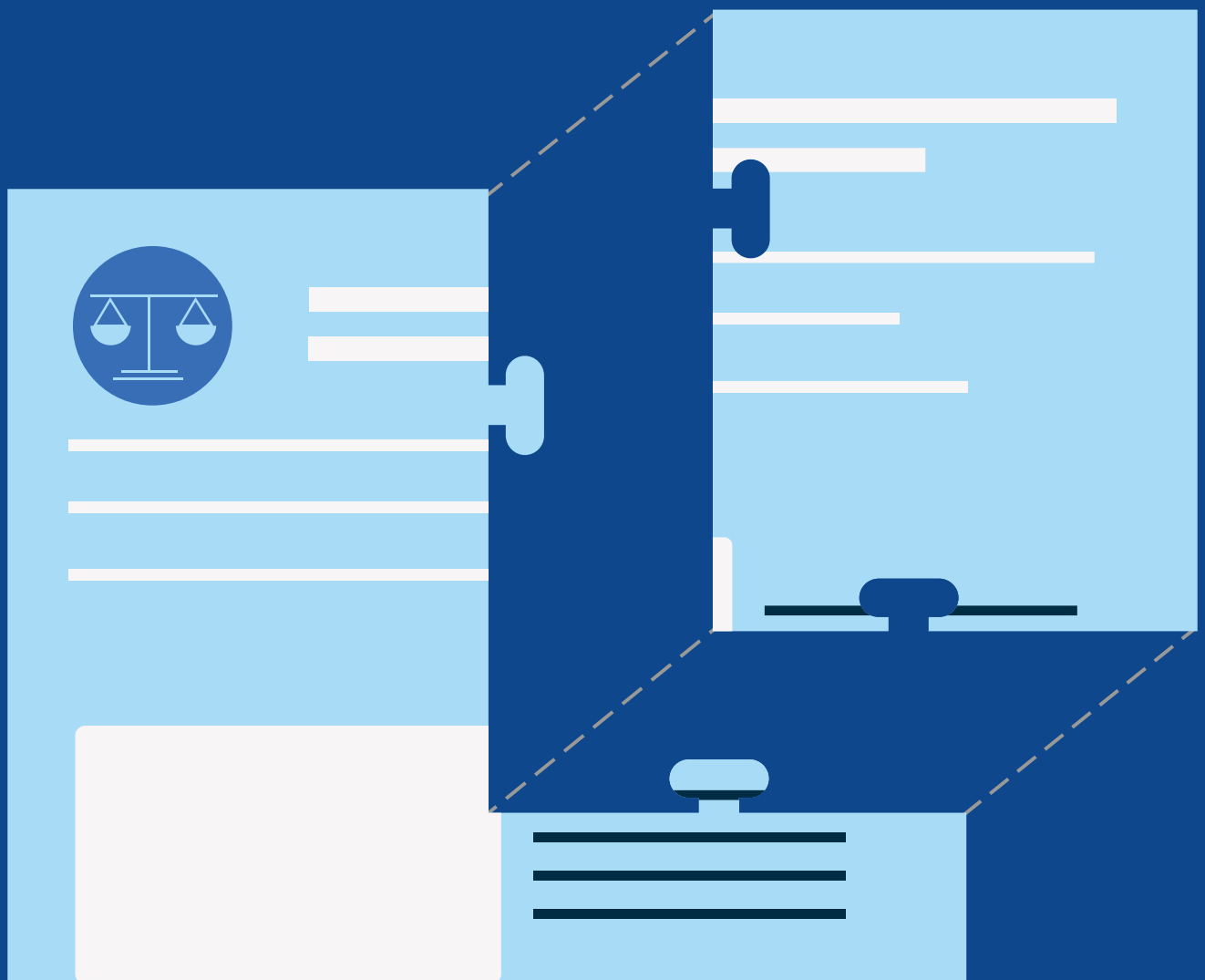
Personal Injury Template Guide: From Retainer to Settlement



Every personal injury case (and personal injury client) is different. Despite this, most cases follow a similar trajectory.

You'll start by interviewing your new client—where you learn about the accident and its impact on the client's life to determine whether they have a legitimate case. Next, you'll sign a retainer agreement to detail the terms of your representation and make things "official."

Depending on the file, you might prepare a demand letter to outline your client's case and get negotiations going with the defendant and their insurer. Or, you might choose to proceed with depositions of both the plaintiff and defendant before engaging in negotiations.

And, when all is said and done—when you reach a settlement with the defendant and hand a check over to your (hopefully happy) client—you'll prepare a settlement sheet making it clear how much the client is receiving after your retainer fee and other expenses have been deducted.

Of course, when working through each step—and with a heavy caseload to manage—every minute counts. That's why we've prepared the templates in this guide: to help you make fast work of routine tasks in your personal injury files.

How to use this guide

In this guide, you'll find the following personal injury templates:

- Personal injury consultation document, motor vehicle accident
- Personal injury-specific retainer clauses
- Personal injury demand letter
- Personal injury settlement sheet
- Personal injury deposition cheat sheet - plaintiff, motor vehicle accident
- Personal injury deposition cheat sheet - defendant, motor vehicle accident

Remember that these templates are provided for educational purposes only and are not meant to be relied on at face value. Lawyers should always use professional judgment when using or revising these templates (or any templates!), which may require amendments based on your jurisdiction and the needs of your particular file.

Streamlining your personal injury practice

Using templates to streamline your personal injury practice is a great step—but, in the tech-forward era that we live in, there's so much more that personal injury lawyers can do to automate routine tasks and open up more time to spend on meaningful legal work.

For example, by harnessing the combined power of Clio Grow and Clio Manage, firms get everything they need to grow and manage their firm. As the industry's only end-to-end software solution for law firms, Clio Grow and Clio Manage can help firms manage marketing and intake through case management and payments.

What's more, Clio Manage offers personal injury-specific features to serve the unique needs of personal injury firms. With Clio, your personal injury files are covered at every step. You can easily organize medical records and bills by provider and set automated reminders to follow up on outstanding records, ensuring no critical pieces of evidence are overlooked. You can also track costs, including damages and medical liens and fees to ensure that, when settlement comes, you can distribute settlement funds quickly. And, during negotiations, you can run settlement estimates in Clio, helping you to easily understand the value range of your client's case without putting in hours of research or calculations.

To learn more about Clio, be sure to Watch How Personal Injury Law Firms Use Clio or book a demo today.

Personal injury consultation document, motor vehicle accident

1. CLIENT INFORMATION

- Full legal name:
- Contact number:
- Email address:
- Address:

2. INJURY INFORMATION

- Have you suffered an injury? [Y/N]
- Did that injury result in:
  - Wage loss
  - Loss of use of property
  - Hospital and medical expenses
  - Property damage
  - Loss of earning capacity
  - Loss of life
  - Other types of damages (please list)
- What was the cause of the injury?
  - Motor vehicle accident
  - Medical malpractice
  - Negligence
  - Intentional harm
  - Dangerous premises
  - Dangerous products or goods
- Date and time of the injury
- Location where the injury occurred:
  - Is this location a private residence, business, or public space?
- Was anyone else injured in the same incident or in the same way? If so, how many?
- Are you still incurring costs or loss of wages from this injury?

3. WHO INJURED YOU?

- Who injured you?
  - Is this a business or organization?
  - Is this a government agency?
- Contact details for this party:
- Is there more than one party responsible for your injury? If so, how many?
  - Contact details for each party?
- Have you had contact with these parties about the injury? If so, please describe the contact below.

4. ACTIONS TAKEN BY YOU

- Have you talked with any other lawyers about your injury?
- Do you have documents relating to the injury?
  - Police statements or reports
  - Medical records
  - Insurance paperwork
- Do you currently have a doctor treating this injury?

Personal injury-specific retainer clauses

The specifics of contingency fee agreements vary between jurisdictions, but the items these agreements should cover are largely similar. Here are some personal injury and contingency fee sample clauses that should be considered when drafting your retainer agreement with a client.

1. WHO IS REPRESENTING THE CLIENT AND IS ELIGIBLE TO SPLIT FEES

Some jurisdictions require that each participating lawyer or law firm must sign the contract with the client and must agree to assume joint legal responsibility to the client for the performance of the services in question as if each were partners of the other lawyer or law firm involved. This is done to prevent clients having their cases farmed out and non-contributing law firms splitting fees to which they may not be entitled. A sample clause addressing this concern could read:

> This Engagement Agreement is made between _____ [name of law firm], hereinafter refered to as "Law Firm," or "We" or "Our" or "Us" and _____ _____ [name(s) of client(s)], hereinafter referred to as "You" or "Client(s)." Any fees payable to the Law Firm may be shared between all lawyers directly employed by Law Firm as per their own policies and agreements. Law Firm and Client agree that no other law firm or lawyer may be included in this matter absent written notice. Any third-party lawyer or law firm added following the commencement of the agreement, without either the discharge or withdrawal of the Law Firm prior, may not share a contingency fee interest in recovered funds without first a written amendment to this agreement signed by Client, Law Firm, and the third-party. Furthermore, there are no intended third-party beneficiaries to the relationship between our law firm and you.

2. HOW CONTINGENCY FEES ARE CALCULATED

Regulations may dictate how fees may be charged and calculated in contingency fee cases. Consult your local regulations and modify this sample clause to clearly communicate to a client how fee recovery will be calculated. Be sure to explicitly describe if expenses are to be deducted from the recovery and whether such expenses are to be deducted before or, if not prohibited by statute or court rule, after the contingent fee is calculated. The writing must clearly notify the client of any expenses for which the client will be liable regardless of whether the client is the prevailing party.

Client agrees to pay Law Firm's fee for professional services, based on a contingency fee, to be charged as follows:

____ % of the gross amount recovered in a settlement before we have instituted a lawsuit;

____ % of the gross amount recovered in a settlement after we have instituted a lawsuit;

____ % of the gross amount recovered after trial has begun;

____ % of the gross amount recovered if any judgment is appealed, either on your behalf or by an adverse party, or if garnishment or any proceeding after judgment is necessary to collect the judgment or any portion of it; and

____ % of the gross amount recovered if the matter is the subject of a retrial as ordered by a trial or appellate court.

The percentage recovery will be calculated [before/after] outstanding medical bills, expenses, and other costs of suit are deducted. [If at the time the case is settled or a judgment is paid, Client owes the Law Firm for any expenses or other items, Law Firm will deduct that sum from the gross amount to be paid to Client, with the remaining amount subject to our contingency fee, as described above.] Law Firm will provide Client with a summary statement listing these deductions at the time of any payment to them from a settlement or judgment.

Client understands that the rates set forth above, where not set by law, are negotiable between Law Firm and Client. Client agrees to pay the negotiated, calculated contingency fees based on the rates and basis set forth above.

3. HOW YOUR LAW FIRM GETS PAID

Some administrative law practices see recovered funds being paid directly to their client by default. This can make recovery of earned contingency fees difficult sometimes. To prevent this, include a clause in your retainer agreement stating that all recovered funds must be made payable to the law firm and deposited directly into the law firm's trust account. Note: you may also need to submit the appropriate forms with the agency paying the fees.

> Client agrees that recovered funds will be first deposited directly into the Law Firm trust account for fee calculation and expense reimbursement prior to the funds being disbursed to the Client. Failure to have recovered funds placed in the Law Firm trust account may result in a lien being filed against the Client for outstanding fees and expenses owed.
>
> Law Firm has a lien on any and all claims that are the subject of Law Firm's representation under this Agreement. Law Firm's lien will be for any sums owing to Law Firm for any unpaid costs, or attorney's fees, at the conclusion of Law Firm's services. The lien will attach to any recovery Client may obtain, whether by arbitration award, judgment, settlement or otherwise. An effect of such a lien is that Law Firm may be able to compel payment of fees and costs from any such funds recovered on behalf of Client even if Law Firm has been discharged before the end of the case. In the event Law Firm withdraws from representing Client without cause, Law Firm will not be entitled to any lien for fees. The lien will exist and attach to any recovery only for costs already advanced by Law Firm

4. HOW YOU WILL BE COMPENSATED IF THE CLIENT PICKS ANOTHER LAW FIRM AFTER THE CASE HAS BEGUN

Personal injury cases may see clients and lawyers needing to separate. Maybe the client wants a different strategy or approach than your law firm supports. Maybe you need to get some distance from the client. Provided this separation doesn't prejudice the client, you may hand off a client's file to another law firm. That does not mean you should waive all compensation. Adapt this clause to retain an interest in any future funds earned that used your contribution in part to achieve.

In the event of Law Firm's discharge, or withdrawal with justifiable cause, Client agrees that, upon payment of the settlement, arbitration award or judgment in Client's favor in this matter, Law Firm will be entitled to be paid by Client a reasonable fee for the legal services provided. Such fee will be determined by considering the following factors:

- The agreed terms of this Engagement Agreement between Client and Law Firm;
- The amount of the fee in proportion to the value of the services performed by Law Firm;
- The amount involved and the results obtained;
- The time limitations imposed by the Client or by the circumstances; and
- The informed consent of the Client to the fee.

5. RESULTS NOT GUARANTEED

This type of clause helps manage client expectations by making sure they clearly understand there is no guarantee of a particular outcome.

Client acknowledges that the Law Firm cannot promise or guarantee a particular result.

6. CLIENT APPROVAL NECESSARY FOR SETTLEMENT

Clients rely on their lawyers' expertise when it comes to negotiating and settling personal injury disputes. Because of this, the client may not realize that they are the final word when it comes to accepting a settlement offer.

To solve this, approval can be obtained prior to receiving an offer. If the client has agreed to any amount within a range that includes a current offer on the table, an attorney can accept it on their behalf. Use this clause to let clients know that acceptable settlement terms still require their express approval before you can accept on their behalf.

> Law Firm will not make any settlement or compromise of any nature of any of Client's claims without Client's prior approval. Client retains the absolute right to accept or reject any settlement.

7. HOW CLIENTS CAN GET HELP FROM A LAWYER ABOUT THEIR LAWYER

Some states require specific mandatory language be included in contingency fee agreements between lawyers and clients.

For example, Florida requires the following language be included in contingency fee agreements for personal injury or for property damages or for death or loss of services resulting from personal injuries based on tortious conduct of another, including products liability claims.

> The undersigned client has, before signing this contract, received and read the statement of client's rights and understands each of the rights set forth in it. The undersigned client has signed the statement and received a signed copy to refer to while being represented by the undersigned lawyer(s).
>
> This contract may be canceled by written notification to the lawyer at any time within three business days of the date the contract was signed, as shown below, and if canceled the client is not obligated to pay any fees to the attorney for the work performed during that time. If the lawyer has advanced funds to others in representation of the client, the lawyer is entitled to be reimbursed for amounts that the lawyer has reasonably advanced on behalf of the client.

If you are notifying the client of the possibility of a lien if fees and costs are not paid at the end of an engagement, the following clause is recommended to preserve your ability to place the lien with the client's informed consent.

> Because a lien may affect Client's property rights, Client may seek the advice of an independent lawyer of Client's own choice before agreeing to such a lien. By initialing this paragraph, Client represents and agrees that Client has had a reasonable opportunity to consult such an independent lawyer and—whether or not Client has chosen to consult such an independent lawyer—Client agrees that Law Firm will have a lien as specified above.
>
> _____ (Client initials here) _____ (Law Firm Attorney initials here)

Personal injury demand letter

[Date]

Re: *[File Name or Description]*

We ask that this demand be immediately forwarded to *[Specify]*.

1. IDENTIFY YOURSELF AND YOUR ROLE REPRESENTING THE CLIENT

[Plaintiff] has retained *[Law Firm]* to represent them resolving the injuries they received and damages they experienced as a result of your actions. As their legal representative, you are to direct all communications about this dispute solely to *[Law Firm]*. Refrain from communicating with my client directly, as they have retained *[Law Firm]* to handle their interests.

2. FACTUAL CIRCUMSTANCES AND LIABILITY

[Describe the circumstances surrounding the accident. This might include the parties' direction of travel, a description of how the accident happened, diagrams of or images from the crash site, and other pertinent information. Explain why the defendant is at-fault for the accident.]

3. DEDUCT AND RETAIN TO PAY OTHERS

3.1 CAUSALLY RELATED INJURIES

[Plaintiff] has sustained a multitude of serious injuries as a result of the accident, as summarized below:

[Summarize claimed injuries]

3.2 TREATMENT

[Summarize plaintiff's medical treatment since the accident by provider]

Provider	*[Name of provider]*
Dates of Treatment	*[Date range]*
Number of Visits	*[Number of visits]*
Summary	*[Summarize relevant visits and insights from medical records]*

4. DAMAGES

4.1 PROJECTED CLAIM VALUE

Element of Damages	**Amount**
Economic Losses	
Past Medical Expenses	*[Value]*
Future Medical Expenses	*[Value]*
Loss of Income	*[Value]*
Loss of Household Services	*[Value]*
Non-Economic Losses	
Past and Future Pain and Suffering	*[Value]*
Total Damages	***[Value]***

4.2 CURRENT AND FUTURE MEDICAL EXPENSES

[Plaintiff]'s medical bills to date total *[value],* itemized as follows:

Description	**Amount**

[Describe claim for future medical expenses]

4.3 LOSS OF INCOME

[Describe claim for loss of income]

4.4 LOSS OF HOUSEHOLD SERVICES

[Describe claim for loss of household services]

4.5 NON-ECONOMIC DAMAGES

[Describe claim for non-economic damages]

5. DEMAND TO SETTLE

With a Total Projected Claim Value of at least *[Value]*, *[Plaintiff]* hereby demands the amount of *[Value]* from *[Defendant/Insurer]*.

Our client seeks fair compensation for their physical injuries, past and future medical expenses, pain and suffering, negative impact on the quality of their life, physical impairment, and the increased possibility of recurring injuries that are a direct consequence of *[Defendant]'s* actions.

It is our firm belief that a reasonably prudent insurer would pay the requested settlement demand. You now have all of the information available to properly evaluate this claim. If there is something you believe you are missing, or you have any questions, please call right away to ask for it. If we do not hear from you within 15 days, we will assume you have everything you need to process *[Plaintiff]'s* claim.

If you have any questions, please do not hesitate to call us. Thank you in advance for your assistance and cooperation in this matter.

6. EXHIBIT LIST

With a Total Projected Claim Value of at least *[Value]*, *[Plaintiff]* hereby demands the amount of *[Value]* from *[Defendant/Insurer]*.

Exhibit No.	Description
1	*[Description]*

Personal injury settlement sheet

FINAL SETTLEMENT STATEMENT

Re: *[File Name or Description]*

1. RECOVERY

[List amounts recovered for client's personal injury claim from each payor - for example, insurance company, medical payments, etc.]

TOTAL RECOVERY: $XXX,XXX.XX

2. LESS ATTORNEY'S FEES

[List amounts to be deducted from client's personal injury recovery - for example, attorney's fees and other attorney-related expenses]

TOTAL DEDUCTED FEES: $XXX,XXX.XX

3. DEDUCT AND RETAIN TO PAY OTHERS

[List amounts to be deducted and paid to lien holders - for example, liens relating to medical treatments]

TOTAL DEDUCTIONS: $XXX,XXX.XX

4. LESS COST ADVANCED

[List any recoverable amounts that the attorney covered for the client's personal injury case - for example, the cost of collecting medical records on your client's behalf]

TOTAL COST ADVANCED: $XXX,XXX.XX

5. NET RECOVERY TO CLIENT: $XXX,XXX.XX

I hereby acknowledge receipt of the foregoing settlement of all claims arising out of my injury referenced herein, and I authorize disbursement of these monies as set out above. I understand that every effort has been made to pay any medical bills and medical liens incurred. If any bills remain unpaid, I understand that I am responsible for the payment of the same.

I acknowledge that the settlement proceeds have been disbursed in accordance with my instruction. I acknowledge that the attorney fee outlined above is the amount that I agreed to pay my attorney when I retained their services. If the recovery was obtained by settlement or compromise, I affirm that I authorized the settlement or compromise, and I am satisfied with the same.

I acknowledge receipt of a copy of this Settlement Statement.

This, the ____ of _____, 20__.

_____

[Name of Client]

Personal injury deposition cheat sheet – plaintiff, motor vehicle accident

1. PERSONAL INFORMATION

- Full name:
- Address:
  - Address at time of accident (if different):
- Phone number:
- Email address:
- Date of birth:
- Marital status:
  - Length of relationship:
- Children/dependants:
  - Ages
- Driver's license:
  - Class:
  - Any restrictions:
- Medical coverage:
  - If yes, details:
- Criminal history:
  - If yes, details:
- Social media usage:
  - If yes, which applications:

2. EMPLOYMENT INFORMATION

- Occupation:
- Employer:
- Contact information for employer:
- Job title/duties:
- Length of employment:
- Name of immediate supervisor:
- Remuneration:
- Hours regularly worked:
- Future prospects:
- Benefits:
- Union:

[Request same details for previous employers, including why the plaintiff left.]

3. VEHICLE INFORMATION

- Year and model of vehicle involved in the accident:
- Owner:
  - If plaintiff is not owner, did they have permission to use?
- Vehicle in good working condition prior to accident?
- Did accident result in damage to vehicle?
  - If yes, details:

4. PLAINTIFF'S CONDITION PRIOR TO THE ACCIDENT

- How many hours of sleep evening prior to accident:
- Any prescription drugs in 24 hours prior to accident:
- Any non-prescription drugs in 24 hours prior to accident:
- Other illness or disability affecting driving in 24 hours prior to accident:

5. THE ACCIDENT

- Date of accident:
- Time of accident:
- Location of accident:
  - Familiarity with accident area:
  - Characteristics of location (e.g., crosswalks, intersection, etc.):
- Coming from:
- Going to:
- Speed at time of accident:
  - Speed limit on road:
- Weather condition at time of accident:
- Surface conditions at time of accident:
- Distractions in vehicle at time of accident:
- Lighting at time of accident:
- Wearing seatbelt at time of accident:
  - Type of seatbelt:
- Required to wear prescription glasses or contacts?
  - If so, wearing them at time of accident?
- Plaintiff to describe in own words how the accident happened:
- Any opportunity for evasive action?
  - If so, was evasive action taken?
- Point of impact
  - How far did vehicles travel after point of impact?
- Air bags deployed?
- Other passengers in vehicle?
  - If so, location and what happened to them:

6. FOLLOWING THE ACCIDENT

- What happened to plaintiff in the accident:
  - Did plaintiff brace before impact:
  - Did plaintiff strike anything in vehicle:
  - Any immediate symptoms following the accident:
- If passengers in vehicle, were passengers injured:
- What happened following the accident:
- Emergency services attended the scene:
  - If so, which ones:
- Spoke to anyone following the accident:
  - If so, who:
- Spoke to defendant following the accident:
  - If so, details of conversation:
- Observations of defendant's condition following the accident:
- Observations of damage to defendant's vehicle following the accident:
- Statements provided following the accident:
  - When:
  - To whom:
  - What was said:

7. INJURIES

- Identify specific injuries attributable to accident:
  - Location and nature of pain:
  - When problem began:
  - How long it lasted (or whether it is ongoing):
  - Whether constant or intermittent:
  - Whether particular movement or activities cause aggravation:
- Other pain and health problems (e.g., headaches, lack of concentration, dizziness, nausea):
  - If yes, specify when symptoms began and how long they lasted:
- Need for medical assistance devices (e.g., cane, crutches, wheelchair):
  - If yes, duration and frequency of use:
- Changes in appearance (e.g., weight gain, scars, disfigurement):
- Changes in emotional or psychological state:

8. EFFECT OF INJURIES ON PLAINTIFF'S EMPLOYMENT

- Did plaintiff take time off work following the accident?
  - If yes, details:
  - How much time off work:
  - Did doctor advise plaintiff not to work:
  - Did plaintiff lose entitlement to benefits, vacation, sick days:
- Did plaintiff collect disability while off work:
- Any adverse impact on employment (including long-term earnings or career aspirations):
- Other negative impacts on employment (e.g., being denied promotion)
- Has plaintiff been accommodated at work:
- Can plaintiff still do same type of work as before?

9. EFFECT OF INJURIES ON PLAINTIFF'S DOMESTIC AND RECREATION ACTIVITIES

- Was plaintiff unable to participate in any domestic or recreation activities following the accident?
  - If yes, details:
  - Have activities been resumed or attempted?
- Has plaintiff canceled domestic or recreational plans due to the accident (e.g., canceled vacations, delayed family planning, etc.)
  - If yes, details:
- Have family members provided domestic services to the plaintiff they would otherwise not have provided?
  - If yes, details:

10. PLAINTIFF'S MEDICAL HISTORY

- Pre-existing illnesses and conditions (including psychological or psychiatric illness) requiring medical treatment?
  - If yes:
    - Attending physician:
    - Date/time frame:
    - Nature of illness and duration:
    - Treatment:
- Medication prior to the accident?
  - If yes:
    - Dosage:
    - Prescribed by whom:
- Did accident aggravate an old injury or illness?
  - If yes, details:
- Have there been intervening medical conditions or injuries since the accident?
  - If yes, details:

11. PLAINTIFF'S TREATMENT

- Treatment following the accident?
    - If yes, obtain:
        - Attending physician and contact information:
        - Date/time frame:
        - Complaints:
        - Treatment:
- Has treatment helped or hindered recovery?
- If treatment discontinued, why?
- Plaintiff complying with treatment recommendations?
- Have treators provided diagnosis or prognosis regarding plaintiff's condition?
- Any x-rays, MRIs, CT scans, etc.?
    - If yes, details:
- Any medications prescribed or taken?
    - If yes, details:
- Any future surgeries or appointments planned?
- Prognosis?
    - If yes, details:
- Outstanding medical bills/liens?
    - If yes, details:

Personal injury deposition cheat sheet - defendant, motor vehicle accident

1. PERSONAL INFORMATION

- Full name:
- Address:
  - Address at time of accident (if different):
- Date of birth:
- Current employer:
  - Employer at time of accident (if different):

2. VEHICLE INFORMATION

- Year and model of vehicle involved in the accident:
- Owner:
  - If defendant is not owner, did they have permission to use?
- Vehicle in good working condition prior to accident?
- Did accident result in damage to vehicle?
  - If yes, details:

3. DEFENDANT'S CONDITION PRIOR TO THE ACCIDENT

- How many hours of sleep evening prior to accident:
- Any prescription drugs in 24 hours prior to accident:
- Any non-prescription drugs in 24 hours prior to accident:
- Other illness or disability affecting driving in 24 hours prior to accident:

4. THE ACCIDENT

- Date of accident:
- Time of accident:
- Location of accident:
  - Familiarity with accident area:
- Coming from:
- Going to:
- Characteristics of location (e.g., crosswalks, intersection, etc.):
- Speed at time of accident:
  - Speed limit on road:
- Weather condition at time of accident:
- Surface conditions at time of accident:
- Distractions in vehicle at time of accident:
- Lighting at time of accident:
- Wearing seatbelt at time of accident:
  - Type of seatbelt:
- Required to wear prescription glasses or contacts?
  - If so, wearing them at time of accident?
- Defendant to describe in own words how the accident happened:
- Any opportunity for evasive action?
  - If so, was evasive action taken?
- Point of impact
  - How far did vehicles travel after point of impact?
- Air bags deployed?
- Other passengers in vehicle?
  - If so, location and what happened to them:

5. FOLLOWING THE ACCIDENT

- What happened following the accident:
- Emergency services attended the scene:
    - If so, which ones:
- Spoke to anyone following the accident:
    - If so, who:
- Spoke to plaintiff following the accident:
    - If so, details of conversation:
- Observations of plaintiff's condition following the accident:
- Observations of damage to plaintiff's vehicle following the accident:
- Statements provided following the accident:
    - When:
    - To whom:
    - What was said:

About Clio

Clio is transforming the legal experience for all by creating the world's leading cloud-based technologies for law firms—to keep lawyers and their clients better connected throughout the legal process. Firms of all sizes and practice areas use Clio products—Clio Manage, Clio Grow, and Clio Draft—to manage firm operations, streamline billing and payments, automate legal documents, and improve client experiences. Following its US$250M Series D funding led by TCV and JMI Equity and its US$110M Series E investment led by T. Rowe Price Associates, Inc. and OMERS Growth Equity, Clio made history by becoming the first legal practice management unicorn in the world in 2021 and became a centaur in 2022 after reaching US$100M in ARR.

Learn more at clio.com

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